only went against the Articles of Association of the holding company, but also contradicted Mistry's own advice in his note that large acquisitions should be taken on only with the full knowledge of Tata Sons. This lapse exposed Mistry to the harshest criticism for adopting double standards after his appointment as chairman.

In the note he had sent to the selection committee prior to his appointment, Mistry had recommended: 'Tata Sons should set down guidelines for the operating companies for Limits beyond which Tata Sons should be informed [of] investments in existing business, new businesses and M&A.' He was thus found wanting in following his own prescription, especially in the acquisition of Welspun.

Though the negotiations for the company had begun in November 2015, it was only about five months later that the Tata Sons board was apprised of it through a note, which itself was woefully short of the details of the proposed transaction. Nevertheless, within two months, on 12 June, the deal was concluded. A *Forbes* article quotes a 'source close to Mistry' claiming that he had sent a detailed note to the board of Tata Sons on 31 May, twelve days before the deal was signed. This was considered too short a time for the board to study the proposal.

When Tata Sons objected to being kept in the dark about the acquisition, a detailed presentation was made on 29 June, seventeen days after the deal was concluded. The Tata Power board generally had the authority to approve the acquisition without reference to the Tata Sons. But Tata Sons, as a 33 per cent stakeholder in Tata Power, had to approve any proposal that would change its debt–equity ratio.

In addition, the nominee directors were also not in agreement with the assets being acquired to be put in a subsidiary of Tata Power. But Tata Power nevertheless went ahead with the acquisition. For the Trusts, the acquisition was made without proper consultation and in a hurried manner, compromising transparency, a principle that the Tata Group sets much store by.

Ratan says that for 'several of us, the trust nominees' included, it looked as if the deal was 'very high-priced'. He (Mistry) got 'all upset that we questioned the price', and 'we asked for [an] audit which he denied'. He 'breached the understanding, the arrangement of getting the affirmative vote of the trust nominees', and therefore, 'the incident was a real flare-up', Ratan adds.